State of Florida
Department of Business and Professional Regulation
Florida Real Estate Commission
Application for Real Estate Instructor Permit
Form # DBPR RE 3

APPLICATION CHECKLIST - IMPORTANT - Submit all items on the checklist below with your application to ensure faster processing.

ALL Instructor Permit Applicants must submit:

- ❑ Fee:
  - $62.75
  - Make check payable to the Florida Department of Business and Professional Regulation.
- ❑ Electronic fingerprints. See Section (d) of Requirements.
- ❑ Supporting legal documentation, if necessary. See Section V of Instructions.
- ❑ Applicants wishing to qualify for licensure through a four year degree and broker license or a four year degree and extensive real estate experience must submit official certified transcripts evidencing the degree.
- ❑ Submit proof of extensive real estate experience, if applicable. See Section IV of instructions.

Please mail your completed application, documentation and required fee(s) to:
Department of Business and Professional Regulation
2601 Blair Stone Road
Tallahassee, FL 32399-0783

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If you have any questions or need assistance in completing this application, please contact the Department of Business and Professional Regulation, Customer Contact Center, at **850.487.1395**.
For additional information see Instructions at the end of this application.

Section I - Application Type

CHECK BASIS FOR INSTRUCTOR QUALIFICATION (See Section IV for details)
❑ Real Estate Instructor Exam [1010]
❑ Specific Degree & Broker's License [1030]
❑ Degree, Extensive Experience, & Broker's License [1040]

Section II - Applicant Personal Information
Note: Applicants must provide at least one physical address.

PERSONAL INFORMATION			
Social Security Number*			
FULL LEGAL NAME			
Last/Surname	First	Middle	Suffix
Birth Date (MM/DD/YYYY) / /	Gender ❑ Male ❑ Female		
MAILING ADDRESS			
Street Address or P.O. Box			
City	State	Zip Code (+4 optional)	
County (if Florida address)	Country		
CONTACT INFORMATION			
Primary Phone Number	Primary E-Mail Address		
RESIDENCE ADDRESS (IF DIFFERENT THAN MAILING ADDRESS)			
Street Address			
City	State	Zip Code (+4 optional)	
County (if Florida address)	Country		

*Under the Federal Privacy Act, disclosure of Social Security numbers is voluntary unless specifically required by federal statute. In this instance, Social Security numbers are mandatory pursuant to Title 42 United States Code, Sections 653, 654, and 666(a); and Sections 455.203(9), 409.2577, and 409.2598, Florida Statutes. Social Security numbers must be recorded on all professional and occupational license applications and will be used to allow efficient screening of applicants and licensees by a Title IV-D child support agency to assure compliance with child support obligations.

Section II - Applicant Personal Information – continued

ADDITIONAL CONTACT INFORMATION (OPTIONAL)	
Alternate Phone Number	Fax Number
Alternate E-Mail Address	

CURRENT/PRIOR LICENSE INFORMATION			
If you currently hold or have previously held a business or professional license/registration in Florida or elsewhere, please list them below (attach additional copies if necessary):			
1. License/Registration Type	State	Date (From) / /	Date (To) / /
License Number		Name Used	
2. License/Registration Type	State	Date (From) / /	Date (To) / /
License Number		Name Used	
3. License/Registration Type	State	Date (From) / /	Date (To) / /
License Number		Name Used	

PRIOR NAME INFORMATION			
Have you used, been known as, or been called by another name (e.g., maiden name or nickname) or alias other than the name signed to the application? ❑ Yes ❑ No If your answer is yes, state name or names used below:			
Last/Surname	First	Middle	Suffix
Last/Surname	First	Middle	Suffix
Last/Surname	First	Middle	Suffix

Section III – Important Testing Considerations and Accommodations

TESTING CONSIDERATIONS
Are you a high school graduate or the holder of an equivalency certificate? ❑ Yes ❑ No
SPECIAL ACCOMODATIONS FOR TESTING
If you wish to take your examination in Spanish you must make this request when scheduling your exam with PearsonVue.
Americans with Disabilities Act (ADA) and Disability Accommodation. In accordance with Chapter 61-11.008, Florida Administrative Code, if you have a disability and you need special assistance with the examination process please call the Bureau of Education and Testing at (850)487-9755 immediately.

Section IV– Real Estate Instructor Qualifications

REAL ESTATE INSTRUCTOR QUALIFICATIONS

NOTE: This section is to be completed by applicants seeking a REAL ESTATE INSTRUCTOR PERMIT ONLY.

A person may qualify for a real estate instructor's permit by meeting the qualifications for practice set forth in Section 475.451(2)(b)1. Please check ONE of the following to indicate how you plan on meeting the requirements for a real estate instructor permit:

❑ 1. Pass the real estate instructor examination administered by the Division of Real Estate.

❑ 2. Hold a bachelor's degree in real estate, finance, accounting, business administration, or its equivalent, and hold a valid broker's license in this state. You must submit a certified official transcript to determine equivalency for the education requirement.

❑ 3. Hold a bachelor's degree, have extensive real estate experience, and hold a valid broker's license in this state. "Extensive real estate experience" shall be defined (at a minimum) as three years of full-time experience as a broker. This experience must include having participated in closing at least five real estate transactions as a sales associate or broker, or as the employing broker of a sales associate or broker, for either party to the transaction, within the 12-month period immediately preceding the filing of an instructor application; please list below. (See Commission Rule 61J2-17.011). You must submit a certified official transcript to determine equivalency for the education requirement and appropriate documentation of experience (e.g. HUD-1 or Purchase/Sales contract).

List Real Estate Transactions (if applicable):

Name of Buyer/Seller	Address	Closing Date
1.		
2.		
3.		
4.		
5.		

Section V (a) – Background Questions

BACKGROUND QUESTIONS			
1.	❑ Yes (If yes, please complete Section V (b))	❑ No	Have you ever been convicted or found guilty of, or entered a plea of nolo contendere or guilty to, regardless of adjudication, a crime in any jurisdiction, or are you currently under criminal investigation? This question applies to any criminal violation of the laws of any municipality, county, state or nation, including felony, misdemeanor and traffic offenses (but not parking, speeding, inspection, or traffic signal violations), without regard to whether you were placed on probation, had adjudication withheld, were paroled, or pardoned. If you intend to answer "NO" because you believe those records have been expunged or sealed by court order pursuant to Section 943.0585 or 943.059, Florida Statutes, or applicable law of another state, you are responsible for verifying the expungement or sealing prior to answering "NO." YOUR ANSWER TO THIS QUESTION MAY BE CHECKED AGAINST LOCAL, STATE AND FEDERAL RECORDS. FAILURE TO ANSWER THIS QUESTION ACCURATELY MAY RESULT IN THE DENIAL OR REVOCATION OF YOUR LICENSE. IF YOU DO NOT FULLY UNDERSTAND THIS QUESTION, CONSULT WITH AN ATTORNEY OR CONTACT THE DEPARTMENT.
2.	❑ Yes (If yes, please complete Section V (c))	❑ No	Has any judgment or decree of a court been entered against you in this or any other state, province, district, territory, possession or nation, related to the practice or profession for which you are applying, or is there any such case or investigation pending?
3.	❑ Yes (If yes, please complete Section V (c))	❑ No	Have you ever had an application for registration, certification, or licensure in Florida or in any other jurisdiction denied, or is there now pending a proceeding or investigation to deny such an application?
4.	❑ Yes (If yes, please complete Section V (c))	❑ No	Has any license, registration, or permit to practice any regulated profession, occupation, vocation, or business been revoked, annulled, suspended, relinquished, surrendered, or otherwise disciplined in Florida or in any other jurisdiction, or is any such proceeding or investigation now pending?

If you answered "YES" to any question in questions 1 – 4 above, please refer to Section V of Instructions for detailed instructions on providing complete explanations, including requirements for submitting supporting legal documents. Please complete Section V (b) for your response to question 1, and complete Section V (c) for your response to questions 2, 3 and 4. If you have more offenses to document in Section V (b), attach additional pages as necessary.

Section V (b) – Explanation(s) for Background Question 1

EXPLANATION	
Offense	
County	State
Penalty/Disposition	
Date of Offense (MM/DD/YYYY) / /	Have all sanctions been satisfied? ❑ Yes ❑ No
Description	

Section V (b) – Explanation(s) for Background Question 1

EXPLANATION	
Offense	
County	State
Penalty/Disposition	
Date of Offense (MM/DD/YYYY) / /	Have all sanctions been satisfied? ❑ Yes ❑ No
Description	

EXPLANATION	
Offense	
County	State
Penalty/Disposition	
Date of Offense (MM/DD/YYYY) / /	Have all sanctions been satisfied? ❑ Yes ❑ No
Description	

Section V (c) – Explanation(s) for Background Questions 2, 3 and 4

EXPLANATION	
State/Jurisdiction:	Application Type/License Number:

Section V (c) – Explanation(s) for Background Questions 2, 3 and 4– continued

EXPLANATION	
State/Jurisdiction:	Application Type/License Number:

Section VI – Affirmation by Written Declaration

AFFIRMATION BY WRITTEN DECLARATION	
I certify that I am empowered to execute this application as required by Section 559.79, Florida Statutes. I understand that my signature on this written declaration has the same legal effect as an oath or affirmation. Under penalties of perjury, I declare that I have read the foregoing application and the facts stated in it are true. **I understand that falsification of any material information on this application may result in criminal penalty or administrative action, including a fine, suspension or revocation of the license.**	
Signature:	Date:
Print Name:	

Instructions

*If you have any questions or need assistance in completing this application, please contact the Department of Business and Professional Regulation, Customer Contact Center, at **850.487.1395**.*

1) Requirements for Real Estate Instructor License

a) Applicant must be at least 18 years old.
b) Applicant must possess a high school diploma or its equivalent.
c) Applicant must possess a Social Security number to apply.
d) Applicant must submit electronic finger prints.
   i) Pursuant to Chapter 475, Florida Statutes, electronic fingerprinting is mandatory for all real estate sales associate, real estate broker, and real estate appraiser applicants. Electronic fingerprinting allows applicants to have their fingerprints scanned and electronically submitted to the Florida Department of Law Enforcement (FDLE) and Federal Bureau of Investigation (FBI).
   ii) Electronic Fingerprinting is located at various convenient sites throughout the state. See http://www.asisvcs.com/indhome.asp?CPCat=FP10STATEREG for more information.
e) Applicant must meet one of the qualifications noted in Section VI, above.

2) General Information and Application Instructions by section

a) **Section I- Application Type**
   i) **Instructor Qualification:**
      (1) Select only one of the qualification methods.
      (2) If you do not hold a broker license in Florida or do not have a degree and/or extensive experience you will need to check the Real Estate Instructor Exam box and pass the instructor examination.
      (3) If you have a Bachelors Degree in a business–related subject, such as real estate, finance, accounting, business administration, or its equivalent and have a valid broker's license in Florida, check Specific Degree and Broker's License.
      (4) If you have a Bachelors Degree in a business–related subject, such as real estate, finance, accounting, business administration, or its equivalent, have extensive real estate experience, and hold a valid Florida broker's license, check the box for Degree, Extensive Experience and Broker's License.
b) **Section II - Applicant Personal Information**
   i) Fill out each section completely. A Social Security number is required in order to apply for any individual license within the Department of Business and Professional Regulation.
   ii) In the Full Legal Name section, applicants must use the name as it appears on his or her Social Security card. Do not use any nicknames, aliases, or initials.
   iii) Provide your mailing address. This will be used for sending correspondence regarding your application and license.
   iv) Provide a valid phone number and email address. Contact information is often used to quickly resolve questions with applications by telephone call or email. If contact information is not provided, questions regarding applications will be mailed to the applicant's mailing address and may take longer to resolve.
   v) Applicants are required to provide at least one physical address – i.e., not a P.O. Box. If the mailing address is not also your physical address, please provide a physical address.
   vi) Additional contact information is optional and will be used when the applicant cannot be reached using their primary contact information.
   vii) Applicants must provide information on current or prior licenses held in Florida or any other state, territory, or jurisdiction of the United States or in any foreign national jurisdiction.
   viii) Applicants must provide information on any prior names or aliases used by applicant. If the name on supporting documentation does not match the applicant's legal name, the alias used in the supporting documentation must be provided in this section. Failure to do so will result in a deficient application.

c) **Sections III - Important Testing Considerations and Accommodations**
   i) To obtain a real estate license in Florida, you must be a high school graduate or have an equivalency (GED).
   ii) If you wish to take the examination in Spanish, see http://www.myfloridalicense.com/dbpr/servop/testing/index.html for more information.
   iii) **NOTE**: If you have a disability and require special accommodations in taking this examination, please contact the Bureau of Education and Testing at 850.487.9755. You must submit a "Request for Special Accommodations" application along with your application. If accommodations are not requested in advance, we cannot guarantee the availability of accommodations. For more information see http://www.myflorida.com/dbpr/servop/testing/ADA.html.

d) **Section IV – Real Estate Instructor Qualifications**
   i) If you do not hold a broker license in Florida, or have a degree from an accredited institution of higher education and/or extensive experience, you will need to check the Real Estate Instructor Exam box and pass the instructor examination.
   ii) If you have a Bachelor's Degree in a business-related subject, such as real estate, finance, accounting, business administration or its equivalent from an accredited institution of higher education and have a valid broker's license in Florida, check Specific Degree & Broker's License.
   iii) If you have a Bachelor's Degree from an accredited institution of higher education, have extensive real estate experience, and hold a valid Florida Broker's license, check the box for Degree, Extensive Experience, & Broker's License.
   iv) Enter the Buyer/Seller information and the address of each and the closing date for each of the 5 transactions that you completed within the one (1) year period immediately preceding the application to become an instructor.

e) **Section V (a), (b), and (c)- Background Questions.**
   i) Question 1:
      (1) If you answer "yes" to this question, you must complete Section V (b) [*make additional copies as necessary*] of the application and provide a copy of the arrest report, copies of the disposition or final order(s), and documentation proving all sanctions have been served and satisfied. **You must supply this documentation for each occurrence.** If you are unable to supply this documentation, a certified statement from the clerk of court for the relevant jurisdiction stating the status of records is required.
      (2) If you are still on probation, you must supply a letter from your probation officer, on official letterhead, stating the status of your probation.
   ii) Question 2:
      (1) If you answer "yes" to this question, you must complete Section V (c) [*make additional copies as necessary*] of the application and provide a copy of the judgment or decree. You must also supply documentation proving all sanctions have been served and satisfied, or if not, stating the current status of any proceedings.
   iii) Question 3:
      (1) If you answer "yes" to this question, you must complete Section V (c) [*make additional copies as necessary*] of the application and supply copies of documentation explaining the denial or pending action.
   iv) Question 4:
      (1) If you answer "yes" to this question, you must complete Section V (c) [*make additional copies as necessary*] of the application and supply copies of the order(s) showing the disciplinary action taken against the license, or documentation showing the status of the pending action.

f) **Section VI - Affirmation by Written Declaration**
   i) The applicant must sign the affirmation by written declaration.

3) 3) Other Information

a) Testing Information
   i) An applicant will be notified when approved for the examination, and must appear for examination within two years from the date the application was received by the Department of Business and Professional Regulation (DBPR).

ii) The testing vendor will be notified, by DBPR, once the application has been approved. The testing vendor will contact the applicant with the required testing administration information. The applicant will receive an admissions authorization letter.
iii) The examination fee will be paid separately by the applicant to the testing vendor.
iv) After passing the exam, the testing vendor will download the grade information to DBPR's system and at that point the system will automatically issue a license number. This can take up to 48 hours. After DBPR issues the license number, you must access your online account and print your license. There will be no license sent by mail.

b) Employment Information
   i) Upon passing the examination, an applicant will receive a certificate of licensure. This does not mean the applicant's license is "active". The applicant may activate his or her license upon securing employment by filing form # DBPR RE 10. The qualifying broker can also add (activate) the sales associate via the broker's online account with DBPR, or by completing form # DBPR RE 11. (The qualifying school can also add (activate) the instructor permit license with the school's online account with DBPR, or by completing form #DBPR RE 6.)
   ii) Please see Department of Business and Professional Regulation Ask us icon, on the website, for additional information.

c) Refunds
   i) Submitting this application and required fees implies your intent to pursue licensure. The department must receive your written request for a refund, per Section 215.26 (2), Florida Statutes, no more than 3 years after the right to a refund has accrued.
   ii) For more information on refunds, see also Rule 61J2-2.0261 of the Florida Administrative Code.